

Court No. - 64

Case :- WRIT - C No. - 19953 of 2024

Petitioner :- Bipin Kumar Tripathi

Respondent :- Purvanchal Vidyut Vitran Nigam Limited And
Another

Counsel for Petitioner :- Bidhan Chandra Rai, Shubham

Counsel for Respondent :- Chetan Chatterjee

Hon'ble Siddhartha Varma, J.

Hon'ble Manish Kumar Nigam, J.

1. It is the contention of learned counsel for the petitioner that the representation of the petitioner when was decided, the respondent did not consider the case of the petitioner wherein it was stated that the petitioner had stopped using electricity ever since 2016 and had also applied for permanent disconnection of the connection. He further states that after 2016, no payment of any bill was made and he also states that at the place of connection there is neither any connecting cable nor any meter in existence. Learned counsel for the petitioner has also submitted that when after 2-3 months, the bills were not paid then it was the bounded duty of electricity department to disconnect the electricity connection under Clause 4.36 and 4.38 of the U.P. Electricity Supply Code, 2005 and when they have not disconnected the electricity connection, it does not lie in their mouth now to say that they would collect the electricity dues ever since 2016. Learned counsel for the petitioner also relied upon Section 56 of Electricity Act, 2003 and submitted that any bill seeking to recover amounts which were two years prior to the issuing of the bill could not have been so recovered.

2. Learned counsel appearing for the Electricity Department may take instructions in the matter.

3. Put up this case as fresh on 10.07.2024.

4. Till then, no coercive action shall be taken against the petitioner.

5. When the case is listed next, name of Sri Pawan Kumar Mishra be shown as counsel for the respondent in the cause list.

Order Date :- 6.6.2024

Nitika Sri.

Court No. - 21

Case :- WRIT - C No. - 19953 of 2024

Petitioner :- Bipin Kumar Tripathi

Respondent :- Purvanchal Vidyut Vitran Nigam Limited And Another

Counsel for Petitioner :- Bidhan Chandra Rai, Shubham

Counsel for Respondent :- Chetan Chatterjee, Pawan Kumar Mishra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Manish Kumar Nigam, J.

1. None present for the petitioner.

2. List as fresh on 18.7.2024.

(Manish Kumar Nigam, J.) (Manoj Kumar Gupta, J.)

Order Date :- 10.7.2024

Jaideep/-

Court No. - 21

Case :- WRIT - C No. - 19953 of 2024

Petitioner :- Bipin Kumar Tripathi

Respondent :- Purvanchal Vidyut Vitran Nigam Limited And Another

Counsel for Petitioner :- Bidhan Chandra Rai, Shubham

Counsel for Respondent :- Chetan Chatterjee, Pawan Kumar Mishra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Manish Kumar Nigam, J.

1. On the request of learned counsel for the petitioner, the case is adjourned for the day.

2. List as fresh on 2.8.2024.

Order Date :- 18.7.2024

Rishabh

[Manish Kumar Nigam, J.]

[Manoj Kumar Gupta, J.]

Court No. - 21

Case :- WRIT - C No. - 19953 of 2024

Petitioner :- Bipin Kumar Tripathi

Respondent :- Purvanchal Vidyut Vitran Nigam Limited And
Another

Counsel for Petitioner :- Bidhan Chandra Rai, Shubham

Counsel for Respondent :- Chetan Chatterjee, Pawan Kumar
Mishra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Manish Kumar Nigam, J.

1. Learned Counsel for the respondent-Electricity Department states that the Department was regularly issuing bills to the petitioners as electricity was being consumed even after 2016.
2. Counsel for the respondent-Electricity Department seeks time to produce the bills and also file affidavit of the Executive Engineer disclosing why temporary and permanent disconnection was not carried out at the petitioner's premises.
3. Put up this case as fresh on **21.8.2024**.
4. Interim order, if any is extended till the next date of listing.

Order Date :- 2.8.2024

S. Singh

(Manish Kumar Nigam, J.) (Manoj Kumar Gupta, J.)

Court No. - 21

Case :- WRIT - C No. - 19953 of 2024

Petitioner :- Bipin Kumar Tripathi

Respondent :- Purvanchal Vidyut Vitran Nigam Limited And
Another

Counsel for Petitioner :- Bidhan Chandra Rai, Shubham

Counsel for Respondent :- Chetan Chatterjee, Pawan Kumar
Mishra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Manish Kumar Nigam, J.

1. Sri Pawan Kumar Mishra, learned counsel for the respondent-Electricity Department, prays for and is granted ten days' further time to file counter affidavit.

2. Put up this case as fresh on 05.09.2024.

3. Interim order, if any, is extended till the next date of listing.

Order Date :- 21.8.2024

Nitika Sri.

(Manish Kumar Nigam, J.) (Manoj Kumar Gupta, J.)

Court No. - 21

Case :- WRIT - C No. - 19953 of 2024

Petitioner :- Bipin Kumar Tripathi

Respondent :- Purvanchal Vidyut Vitran Nigam Limited And
Another

Counsel for Petitioner :- Bidhan Chandra Rai, Shubham

Counsel for Respondent :- Chetan Chatterjee, Pawan Kumar
Mishra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Manish Kumar Nigam, J.

1. Counter affidavit filed on behalf of the respondent, Electricity Department, is taken on record.
2. As prayed, a week's time is allowed to counsel for the petitioner to file rejoinder affidavit.
3. List as fresh on 16 September 2024.
4. Interim order is extended till the next date of listing.

Order Date :- 5.9.2024

Mukesh Kr.

(Manish Kumar Nigam, J.) (Manoj Kumar Gupta, J.)

Court No. - 21

Case :- WRIT - C No. - 19953 of 2024

Petitioner :- Bipin Kumar Tripathi

Respondent :- Purvanchal Vidyut Vitran Nigam Limited And
Another

Counsel for Petitioner :- Bidhan Chandra Rai, Shubham

Counsel for Respondent :- Chetan Chatterjee, Pawan Kumar
Mishra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Manish Kumar Nigam, J.

1. Shri B.C. Rai, learned counsel for the petitioner prays for and is granted one week further time to file rejoinder affidavit.
2. List as fresh on **26.09.2024**.
3. Interim order is extended till the next date of listing.

(Manish Kumar Nigam, J.) (Manoj Kumar Gupta, J.)

Order Date :- 17.9.2024

Ankit.

Court No. - 21

Case :- WRIT - C No. - 19953 of 2024

Petitioner :- Bipin Kumar Tripathi

Respondent :- Purvanchal Vidyut Vitran Nigam Limited And
Another

Counsel for Petitioner :- Bidhan Chandra Rai, Shubham

Counsel for Respondent :- Chetan Chatterjee, Pawan Kumar
Mishra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Kshitij Shailendra, J.

1. Rejoinder affidavit filed today is taken on record.
2. As prayed by Sri B.C. Rai, learned counsel for the petitioner, list as fresh on 18.10.2024.
3. Interim order is extended till the next date of listing.

Order Date :- 26.9.2024

Pkb/

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

Court No. - 21

Case :- WRIT - C No. - 19953 of 2024

Petitioner :- Bipin Kumar Tripathi

Respondent :- Purvanchal Vidyut Vitran Nigam Limited And Another

Counsel for Petitioner :- Bidhan Chandra Rai, Shubham

Counsel for Respondent :- Chetan Chatterjee, Pawan Kumar Mishra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Vikas Budhwar, J.

1. Brief holder of Sri B.C. Rai, learned counsel for the petitioner states that Sri B.C. Rai is out of station. He prays for a short adjournment.

2. List as fresh on **11.11.2024**.

3. Interim order is extended till the next date.

Order Date :- 18.10.2024

N.S.Rathour

(Vikas Budhwar, J) (Manoj Kumar Gupta, J)

Court No. - 29

Case :- WRIT - C No. - 19953 of 2024

Petitioner :- Bipin Kumar Tripathi

Respondent :- Purvanchal Vidyut Vitran Nigam Limited And
Another

Counsel for Petitioner :- Bidhan Chandra Rai, Shubham

Counsel for Respondent :- Chetan Chatterjee, Pawan Kumar
Mishra

Hon'ble Vivek Kumar Birla, J.

Hon'ble Dr. Yogendra Kumar Srivastava, J.

1. Affidavits have been exchanged.
2. List in the second week of January, 2025 for final disposal.
3. Interim order, if any, is extended till the next date of listing.

Order Date :- 19.11.2024

Madhurima



2026:AHC:112787-DB

HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 19953 of 2024

Bipin Kumar Tripathi

.....Petitioner(s)

Versus

Purvanchal Vidyut Vitran Nigam Limited And
Another

.....Respondent(s)

Counsel for Petitioner(s)	:	Bidhan Chandra Rai, Shubham
Counsel for Respondent(s)	:	Chetan Chatterjee, Pawan Kumar Mishra

Court No. - 1

**HON'BLE AJIT KUMAR, J.
HON'BLE INDRAJEET SHUKLA, J.**

1. Heard Sri Bidhan Chandra Rai, learned Senior Advocate assisted by Sri Shubham, learned counsel appearing for the petitioner and Sri Pawan Kumar Mishra, learned counsel appearing for the Electricity Department.
2. By means of this petition filed under Article 226 of the Constitution, the petitioner has questioned the order impugned dated 2nd April, 2024 as well as bill-cum-notice dated 18th March, 2023 for the alleged dues of electricity.
3. It is argued by learned Senior Counsel appearing for the petitioner that the petitioner's father had applied for cancellation of electricity connection in the year 2016, however when the respondent continued to raise the bills without any justifiable reason, the petitioner approached this Court upon the death of his father and for the reason that department itself was negligent in not removing the meter if any and therefore the petitioner ought not to have been saddled with the liability. However, this Court disposed of his petition vide order dated 12th February, 2024 passed in Writ-C No. 2771 of 2024 directing the petitioner to make representation.
4. It is contended that the petitioner did make a representation clarifying the facts in issue, on 28th February, 2024, however the said representation came to be rejected by the order impugned. It is sought to be contended

by learned Senior Counsel that the once the petitioner had applied for disconnection clearing the dues, it was the liability of the Electricity Department under the U.P. Supply Code to have disconnected the electricity or to have removed the meter. If they failed, it was their negligence and for this petitioner should not be saddled with any liability either in terms of electricity dues or in terms of penalty. It is also submitted that the father of the petitioner had died in 2018 itself and therefore, there is no question of using electricity as nobody resided in house thereafter.

5. Per contra, it is argued by learned counsel for the Electricity department that there was no application moved at all for the electricity disconnection and removal of the meter, nor any such evidence has been brought on record. It is submitted that upon the raid being conducted it was found that the electricity connection was fully intact and meter was also installed and, therefore, the bill was raised for the period till 2023. Thus according to him, petitioner's father was in dues earlier, now the petitioner in between the period from October 2016 till 7th April, 2024.

6. At this stage, the petitioner, who is quite a senior advocate in the High Court, himself has appeared before this Court to submit that he would be ready to pay some amount provided he is also given benefit of the one time settlement. Upon being questioned the learned counsel for the electricity department submits that as per the electricity connection given, 50% of the amount can be waived off.

7. In view of the above, we dispose of this petition with the direction to the petitioner to deposit Rs. 50,000/- out of the total outstanding bills of Rs. 1,19,850/- within 15 days or in any case on or before 30.05.2026. We are taking sympathetic view in the matter as a special case as the father of the petitioner had died in 2018 and the premises were not in occupation either by the father or the petitioner. In the circumstances if anybody is using electricity without authorization then the petitioner should not be, in this case atleast, saddled with any liability to pay the entire dues. We have already directed above the petitioner to pay Rs. 50,000/- and we want the department to settle the excess amount after accepting 50,000/- as a genuine amount. This would be special case and shall not be a binding

precedent.

8. It is made clear that after the deposit is made as directed hereinabove, the concerned officer shall be passing an order accordingly in terms of the observations made above within two weeks and shall also direct for no dues certificate to be issued to the petitioner.

(Indrajeet Shukla,J.) (Ajit Kumar,J.)

May 14, 2026
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